

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 08/21/2026 - 09:00 AM**

08/07/2026

11:53 AM

Page 6

Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

Line 8	Petitioner: Ena, Hilda (BUSCH, ROBERT J., JR) Decedent: CRUZ, MALAMAISUA T Personal Representative: Ena, Hilda	Petition for Final Distribution
---------------	--	---------------------------------

Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution is CONTINUED to January 15, 2027 at 9:00 am for Petitioner to file a supplement that provides the decree of distribution that includes each distributee's name and a description of the property or cash, actual dollar amounts if ascertainable, including bank account location, number and amount, to be distributed as required by Local Rule 4.56.

25-PRO-01127-A	Estate of DOUGLAS DEAN SAMORA	
Line 9	Petitioner: Samora, Douglas J. (COKER, CELYN O.) Decedent: SAMORA, DOUGLAS DEAN Personal Representative: Samora, Douglas J. Claimant: AMERICAN EXPRESS NATIONAL BANK Claimant: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK	Motion to be Relieved as Counsel

Tentative Ruling:

APPEARANCE OPTIONAL

The Motion to be Relieved as Counsel is GRANTED absent cogent objection. The Court sets a status hearing on April 16, 2027 at 9:00 am for status of the filing of either a petition for final distribution or a report of status of administration.

25-PRO-01198	IRREVOCABLE TRUST AGREEMENT OF WARREN RILEY, JR.	Amended Petition to: 1. Surcharge and Remove Trustee Horstman for Breach of Fiduciary Duty; 2. Modify and Terminate Trust; 3. Award Double Damages and Attorney's Fees Under Probate Code Section 850 et seq, and Grant Other Remedies
---------------------	---	--



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/21/2026 - 09:00 AM

08/07/2026

11:53 AM

Page 7

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Line 10

Petitioner: Riley, Warren, JR (SALASSI, HANNAH R.)
Respondent: Horstman, Robert W. (MINTON, JOHN D.)
Respondent: Hunter, Ashley (SKAGGS, JASON M.)

Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Amended Petition is DENIED, without prejudice in a very limited fashion.

The Family Court has jurisdiction over all issues arising from the trust created as a result of the marital settlement agreement in FAM0120507. This petition raises issues which are duplicative of issues being litigated in the family law matter. As such, it is not an efficient use of court resources, nor is it economical for either party or the trustee to presently litigate this matter in the Probate court. This court is mindful of two significant facts: 1.) Contrary to the suggestion in the respondent's opposition, petitioner has not sought relief in the family court on a claim of breach of fiduciary duty by the trustee Horstman. Petitioner's inclusion of a footer in his May 15, 2026 RFO in the family law matter which reads "Amended Petition to Surcharge and Remove Trustee for Breach of Fiduciary Duty" is seen by this court as inadvertent. The court takes judicial notice of the RFO, has read it, and finds no such request made. That is important because a beneficiary has standing to bring a claim of breach of fiduciary duty of a Trustee in a probate proceeding. However, this court is deferring any potential litigation on that issue until the matters pending in the Family Court are resolved. To do otherwise would be an undue burden on both the Trustee and Respondent herein. Because the petition is denied without prejudice in a limited fashion, this order in turn will limit any relief Petitioner may seek from the probate court in the future related in any way to the relief sought herein; he may not refile any petition seeking to modify or terminate the trust at issue. Towards that end, those portions of this petition are **denied with prejudice**. The only issue to which prejudice does not attach is the issue of allegations of breach of fiduciary duty of the trustee. However, Petitioner may not file any such petition unless and until the pending matters in the family law case related to this trust and the settlement agreement are concluded. 2.) The court has taken judicial notice of orders after hearing in the Family Law matter, and is mindful that Judge Burdick has found Petitioner's conduct in that case, and that of his attorney, to be purposefully designed to delay further enforcement of the settlement agreement and frustrate the ends of justice. To allow this duplicative petition to proceed would only do precisely what Judge Burdick has already determined has occurred and is not to be tolerated.

The Court denied Respondent's request to award attorneys fees and costs.



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/21/2026 - 09:00 AM

08/07/2026

11:53 AM

Page 8

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

25-PRO-01297	Estate of VIRGINIA ARTHUR WEED	cont. from 6/1/26
Line 11	Petitioner: WEED, KIRSTEN TRACY (GRUBER, JOSEPH E., JR) Decedent: WEED, VIRGINIA ARTHUR Proposed Personal Representative: WEED, KIRSTEN TRACY	Probate of Will and Letters Testamentary Hearing w/ ATA

Tentative Ruling:

NO APPEARANCE

The amended petition will be continued for proof of publication and attachment of a copy of the trust, as this is a pour-over will and the Court wants to ensure that all beneficiaries and trustees named within the trust are given notice. The next hearing is set on September 29, 2026 at 9:00 a.m.

25-PRO-01487	IN RE: 2024 NORMA A. GIBBS REVOCABLE LIVING TRUST, DATED JUNE 18, 2024	RE: The remainder of the Petition for 1. Order for Accounting; 2. Order Suspending, Removing, and Replacing Trustee; 3. Recovery of Damages and Attorney's Fees; 4. Order Preventing Trustee from Using Trust Assets to Defend This Action - Continued on
Line 12	Petitioner: Santos, Gemma (LEYDIKER, STEVEN S.) Petitioner: Santos, Rosalie (LEYDIKER, STEVEN S.) Decedent: GIBBS, NORMA A. Respondent: Santos, Edgardo (BOVARNICK, STEVEN H.)	Status Hearing

Tentative Ruling:

NO APPEARANCE

The Petition is CONTINUED to November 11, 2026 at 9:00 am for status and to be heard with the Accounting Petition. Parties are ordered to file status reports ten (10) days before the next hearing.